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KULTURAMI

THE CROSS-BORDER MEDIATION MODEL IN CASE OF PARENTAL ABDUCTION

Małgorzata Chachaj



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PRELIMINARY INFORMATION

The following study has been produced as part of the project 'Dialogue across Cultures - A Model for Cross-Border Mediation in a Parental Abduction Situation' and summarises the findings and recommendations of mediators and mediation participants carried out during the testing phase of the Model, supplemented by good practices proposed by intercultural mediation centres from the UK and Germany.

Educational videos in the areas of law, psychology, mediation and intercultural communication, a training webinar and additional materials are an integral part of the Model and this study - available in the project content.

GOALS OF CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

The overarching goal of cross-border family mediation, in a situation of parental abduction or threat of parental abduction, is to restore a sense of psychological security and to stabilise the life situation of the child and parents by regulating important issues in the life of the family.

The mediator's role is also to enable the parties to mutually understand the cultural differences that divide them as factors that hinder agreement on a parenting plan - the mediator acts as an 'interpreter of life in another culture'. It is important to remember that cross-cultural differences during mediation occur on two levels:

- between the parties to the mediation,
- between the parties to the mediation and the mediator.

Given the different understandings of the meaning and scope of the exercise of parental authority, special care should be taken to define, commonalise and ascertain the identical understanding of these meanings for both parties at the beginning of the mediation process.



The above topics are discussed in more detail in the training webinar that was developed as part of the project.

In the case of a parenting plan carried out at the crossroads of two cultures, in addition to the issues that are standard goals in family mediation, the cross-border mediator is obliged to pay attention to aspects that are often overlooked when mediating in a culturally homogeneous process. In the case of international mediation, however, these are of particular importance. These include:

- Establishing a uniform system of values transmitted to the child and the upbringing rules applied, while respecting the respect and requirements of each of the parents' cultures.
- Determining in which religion or philosophical system the child will be raised and setting standards for their observance.
- Paying attention to building equivalent ties to the culture and country of origin of the mother and father and, by extension, to the parents' extended family or friends.
- Determining the extent and ways in which the child will be introduced to the child's area of cultural heritage, e.g. history, culture and art, as well as secular and religious traditions and customs that play an important role in the social life of both parents.
- Determining whether the child will be guided and educated towards monolingual or bilingualism, as well as which language will act as the first language and what methods will be used to achieve this. This is a very important issue, as this choice can be seen as defining the child's affiliation to the culture whose language is spoken and thus determining which parent is 'more important'.
- The role in the child's life of other family members and how to contact them - grandparents, aunts and uncles, cousins - who often live far away. It is important here to establish a schedule of meetings or other forms of contact, taking into account the dates of special days in the different countries in which the extended

family members live and the cultures to which they belong: e.g. Grandmother's Day and Grandfather's Day, dates of important holidays, Children's Day, etc.

- Clarifying issues that may be a very important part of parenting in a given culture, or a cultural taboo, e.g. having a pet, the child's diet, how to dress, etc.
- Arrangements related to the implementation of contact with the child, which should be discussed in detail in terms of their feasibility. Consideration should be given, among other things, to the long distances between the parents' homes, the timing of important holidays that interfere, for example, with the school year in another country, transport costs, lack of a good air connection, degree of freedom to travel to the country in question - visa, residence permits, etc.

On the above issues, the mediator also acts as an advocate for the rights of the child - this is particularly important in cultures where the child is given a low level of self-determination and the right to express his or her own opinion or show emotions is restricted.



The above topics are discussed in the videos that were produced as part of the project:

- "Child adaptation in multicultural and multilingual settings" in the Psychology section,
- "Intercultural coral reefs in the boundless waters of marriage" in the Intercultural communication section.
- "Adaptation of the child in a multicultural and multilingual environment" in Psychology,
- "Fundamentals of Intercultural Competence" in the Intercultural Communication section,
- „Meeting of two worlds_the iceberg metaphor" in the Intercultural Communication section,
- "The union of two cultures" in Intercultural Communication,

- "Intercultural coral reefs in the boundless waters of marriage" in Intercultural Communication,
- and in the training webinar that was produced as part of the project.

PRINCIPLES OF CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

Conducting cross-cultural cross-border mediation requires special attention on the part of the mediator to respect the basic principles of mediation: neutrality, voluntariness, impartiality, confidentiality and acceptability, which means:

- **Respecting the principle of voluntariness**, the mediator ensures that the parties' agreement or lack thereof to mediate is free from any pressure from the partner and the partner's partner, their families, the so-called "head of family" and other circles of influence. This applies to people coming from a strongly collectivist culture, where the influence of the elderly on family matters is very clear and often their voice is decisive.

During the mediation process, it is good practice, confirming agreement during one-to-one meetings with each party, to provide a safe space for the possibility of withdrawal.

- **Respecting the principle of neutrality**, the mediator ensures that he or she is self-aware of his or her own values, norms, beliefs and biases and makes every effort to ensure that these do not influence the mediation process. He informs the parties that he has taken care to ensure neutrality in this area.

Maintaining the principle of neutrality when mediating with people representing values and social norms that are at odds with the mediator's culture is one of the major challenges of cross-cultural mediation.

The mediator acts without exerting pressure on the conflicting parties - this principle should be particularly taken into account, as some cultures differ considerably in the level and form of influence exerted on others. The formulation of statements that in one culture are neutral and merely point to a possible solution, in another may be perceived as an attempt to pressure a party.

Another element in the context of cultures differing in the degree of individual self-determination - the mediator may more or less consciously influence one of the parties by pointing out, for example, human rights in the mediator's culture or discussing the different social roles of men and women. Such behaviour may also be perceived as a form of pressure on the parties.

- **Respecting the principle of confidentiality**, the mediator should explain to the parties in an understandable way what it consists of and warn them that any attempt by the family to pressure them about the mediation process and arrangements will be ineffective. Furthermore, the mediator should make sure that this information is correctly received by the parties.

People from collectivist cultures have a huge problem trusting and understanding that the mediation process remains only between them and the mediator. These people have grown up in an environment where very personal issues are discussed among family and friends. Such individuals may find it difficult to speak openly during mediation, as they are concerned about revealing the mediation process and the subsequent assessment of the environment. This issue may require additional clarification from the mediator.

The principle of confidentiality is also related to the situation where one of the parties does not wish to disclose his or her location and that of the child. In such a case, it is particularly important for the mediator to ensure that no such disclosure takes place.

- **Respecting the principle of impartiality**, the mediator has the difficult role of reconciling and respecting cultural differences. Furthermore, it informs that the parties in mediation should be treated equally by the mediator with the principle of satisfying the needs of the respective party that are conditioned by their culture, e.g. maintaining the level of power distance and the resulting hierarchy, or the role of women and men in a given society.

The mediator may unconsciously assume that the norms present in their culture - the right to speak on one's own behalf - are universal and unconsciously exert pressure to speak (e.g. in the Caucasus it is not uncommon for a woman to have to ask permission to speak in a discussion). This can result in resistance and loss of confidence in the mediation process. Knowing that the person does not have permission in his or her culture to speak on his or her own behalf, the mediator should modify questioning techniques so that the person feels comfortable.

Consideration should also be given to the question of the balance of power in mediation. In classical models, it is assumed that the mediator's role is to balance the power and influence of both parties in the process. If the mediator achieves this by disregarding the cultural constraints of the parties, such a person may face social consequences for his or her behaviour after the mediation. Ignorance of the norms accepted in a given culture can contribute to such situations and ultimately work to the disadvantage of the 'weaker' party. It is therefore extremely important not to disadvantage the parties.

- **Respecting the principle of acceptability**, the mediator, as in the case of taking consent to mediation, ensures that the expression of the parties' acceptance of the mediation provisions is free from the influence of the partner/partner, family and third parties. It is good practice to have this conversation during meetings in private.

The different ways in which mediation is perceived and conducted in other countries and the parties' knowledge and awareness of the different types of mediation is also an important issue. In Austria mediation is a strictly defined formal procedure, in Poland the mediator can use any type of mediation (e.g. transformative or therapeutic). For example, individual meetings do not function in many countries. The mediator should gather knowledge about the applicable rules in the parties' country of origin and warn the parties about the planned mediation process and its type.

It is also the task of the cross-cultural mediator to make sure that the parties to the mediation properly understand the provisions of the settlement agreement. Attention should be paid to the parties' requirements for the level of detail in the settlement provisions - in countries characterised by a high degree of uncertainty avoidance, the settlement agreement should be very detailed. The context of the communication, the semantics of the definition of terms, etc. should be kept in mind to avoid misunderstandings.



The above topics are discussed in the videos that were produced as part of the project:

- "The principle of neutrality in cross-border mediation" in the Mediation section,
- "Fundamentals of Intercultural Competence" in the Intercultural Communication section,
- "Meeting of two worlds_the iceberg metaphor" in the Intercultural Communication section,
- "The union of two cultures" in the Intercultural Communication section,
- and in the training webinar that was developed as part of the project.

INTERCULTURAL MEDIATOR COMPETENCES

In the context of intercultural mediation, the words of the Norwegian mediator, Grethe Nordhelle, take on particular significance:

*"A good mediator changes his methods depending on the situation he is confronted with."*¹

A mediator, in addition to the obvious formal qualifications, aptitude and character traits recognised as necessary to undertake this role, should be characterised by qualities such as honesty, thoroughness, kindness, responsibility, attentiveness, openness towards other people, emotional stability, resistance to stress, etc. It is very important that a cross-border family mediator in parental abduction cases continuously develops his/her intercultural competence in three areas:

I. Knowledge

- The mediator knows what his or her own cultural background, held stereotypes, prejudices and beliefs about other peoples, ethnic and religious groups are. He is well aware that these can have an impact on his mediation process with people representing different cultures. He/she is aware of his/her own body language and is able to adapt it to the situation at hand, especially when using mirroring techniques.
- When entering the process, the mediator is aware of the values, social norms, religions, customs and traditions of the culture from which the parties to the mediation come, especially in the area of family and child-rearing. He acts with respect for their parties, regardless of whether they declare attachment or detachment from their own culture or religion.
- When entering the process, the mediator has knowledge of the family law in force in the countries of origin or residence of the parties and knowledge of the

¹ G. Nordhelle, *Mekling. Konfliktrorstaelse og konflikthandtering*, GNF 2008.

international instruments governing the situation of abduction and parental kidnapping.

- The mediator continuously improves his/her competences in the area of personal development and extends his/her knowledge in the field of mediation methods and techniques, intercultural communication, child and family psychology, conflict prevention, conflict formation and resolution, national and international law.

II. Skills

- Listens to the party without judging, criticising, showing favour or otherwise impressing his/her own opinions.
- Is able to show respect to people with different views, values, backgrounds according to their social customs.
- Has the ability to self-reflect and can effectively reduce the influence of one's own culture, beliefs, stereotypes and prejudices on the conduct of the mediation process. In this respect, this is an extremely important element in maintaining the mediator's principle of neutrality and impartiality.
- Uses a variety of communication techniques and conflict resolution methods and tools, taking into account cultural factors, the needs of the parties in terms of e.g. high or low context of speech, body language, level of social hierarchy etc.
- Is able to perceive differences in the definition of key concepts, the meaning and understanding of which appear to be universal but are in fact subject to cultural differences, e.g. family, marriage, responsibility for children, duties towards parents, etc.

- Responds constructively to criticism of manifestations of one's own culture by parties involved in mediation.
- Is able to use methods and techniques that minimise emotions - this is particularly important when working with cultures that condone escalation of emotions, especially in family matters.
- Builds an atmosphere of safety and trust by, among other things, understanding and accepting the cultural specificities of the parties.
- Can respect the independence and autonomy of parties from cultures that deny or restrict one party's right to self-determination.

III. Attitude

- Mediates with respect for the rights and dignity of the human being regardless of: gender, age, race, origin, nationality, ethnicity, religion, political views, health status and other aspects.
- Is characterised by openness and cognitive curiosity to different models of family and social life and flexibility in dealing with new and surprising situations.
- Shows tolerance for solutions that are not acceptable in the mediator's culture.
- Maintains mediator neutrality - understands and accepts different beliefs and behaviours operating in other cultures.
- Demonstrates patience in the process of understanding the needs of parties conditioned by a different culture.



The above themes are explored in the films that were produced as part of the project:

- "The conflict wheel in cross-border mediation" in the Mediation section,
- "Cultural differences in the mediation process" in the Mediation section,
- "The principle of neutrality in cross-border mediation" in the Mediation section,
- "Cross-border mediation through the eyes of a mediator" in the Mediation section,
- "Empathetic communication in mediation" in the Mediation section,
- "Migration and the Global Family" in the Intercultural Communication section,
- "Fundamentals of Intercultural Competence" in the Intercultural Communication section,
- "Adaptation of the child in a multicultural and multilingual environment" in the Psychology section.
- and in the training webinar that was developed as part of the project.

CONDUCTING CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

Awareness of the possibility to use mediation as an alternative dispute resolution method varies from country to country. Due to different values and social norms in different cultures, the parties may, for example, have a different perception of their right to self-determination, to express their own opinion, of a child's right to have a say in matters that concern them, or have a different approach to respecting the settlement agreement. The mediator's role is to ensure that the parties recognise and have an identical understanding of: the nature of the mediation process, the role of the mediator and the implications of any settlement agreement.

Place of mediation

Due to the specificity of international mediation, where the parties are in other countries or do not wish to disclose their place of residence or stay, there is a

requirement for a high degree of flexibility on the part of the mediator as to, inter alia, the place of mediation, the method and means of communication used.

Thus, cross-border mediation, depending on the existing situation, the will of the parties and the level of conflict between the parties, can be conducted:

- at a place indicated by the parties, where all participants in the mediation meet,
- at a place indicated by the parties, where meetings take place alternately with the parties,
- in different locations (shuttle mediation), when the mediators travel between the locations indicated by the parties and meet with them there as well,
- at a location roughly in the middle of the distance between the parties,
- online mediation where all participants meet on a chosen communication platform,
- any mixed form, e.g. the mediators along with one party meet stationary and connect via a communication platform with the other mediation participants.

For both onsite and online mediation, it is important to ensure a venue that meets the requirements of parties from different cultures. Issues of privacy and neutrality or a sense of security are very important, as these may be defined differently depending on the culture.

It is also possible to contact a cross-border mediator residing in the other party's place of residence and to conduct remote com- mediation with him or her. Such a practice requires extensive contacts with cross-border mediators, e.g. within professional networks. In this case, the meeting takes place online between the mediator, the party, the interpreter and the other required professionals on one side and the other side, the other mediator, the other interpreter and the other required professionals.

Procedure

The mediator is responsible for maintaining the procedure and organisational issues of the mediation. This is worth emphasising when mediating with parties from cultures where there is a low need to follow established procedures and rules, in which case the mediator's role is more demanding.

Important elements in the conduct of an intercultural mediation meeting

Particular cultural sensitivity should be maintained to avoid behaviour incompatible with the social norms or traditions of the parties when:

- the creation and sending of mediation invitations - style of communication, level of formality, forms of politeness,
- deciding which party the mediator contacts first at the mediation appointment stage,
- the form of greeting - who greets whom, in what form and in what order,
- the order in which people enter the mediation room,
- the way chairs are set up for the mediation participants at the table,
- the type and manner of serving drinks and other refreshments,
- tone of voice, gesticulation and other body language appropriate to the situation,
- priority in giving the floor,
- involvement of third parties (professionals) during discussions,
- making sure that in case of meetings in private, a neutral third person will not be necessary (especially when the party is a woman and the mediators are men).

For example, in Arab cultures, it is extremely important who speaks first in the discussion, the order in which the parties enter the room and the impact of the spatial relationship between the participants in the conversation - the arrangement of who sits at the table and where.

Participation of mediators

Due to the nature of cross-cultural family mediation, the process should be conducted by two mediators. It is important to bear in mind:

- The age of the mediators

Depending on the culture represented by the parties, the proper selection of mediators by age is essential to preserve their authority and the parties' respect for the mediators.

- Gender of the mediators

It is most desirable for mediators to be represented by a woman and a man. In some cultures, such a proposal is not acceptable and a pair of mediators should be made up of two men.

It is good practice for mediators to come from the parties' cultures of origin or to have personal experience of contact with those cultures, e.g. having lived for a long time in the communities concerned.

Individual meetings with participants

Having one-to-one meetings (either in-person or online) is extremely important in cross-cultural mediation. It allows, in addition to providing and obtaining standard information, to ascertain whether consent to mediation is voluntary and to obtain the necessary information about the values, social norms characterising the mediating party. It is also a good moment to clarify, in a way that is understandable to the party, the rules of mediation, the role of mediators and the effects of mediation.

PARTICIPATION OF EXPERTS IN THE CROSS-BORDER FAMILY MEDIATION PROCESS

Language interpreter

During the mediation process, the presence of a qualified interpreter is important in order to:

- ensure good quality communication,
- prevent the parties from challenging the settlement agreement on the grounds that the interpreter is not available or is not qualified in the language and therefore does not understand the mediation process and its findings.

It is recommended that the interpreter also have knowledge of the parties' cultures of origin in order to preserve the cultural context of the statements.

Dispensing with the presence of an interpreter, for fear of his or her disrupting the process, is only possible if the mediator is fluent in the language of the parties.

All documents produced during the mediation process should be written in the parties' native languages.

It is good practice to use a qualified interpreter who is familiar with the culture of the interlocutor, especially in the context of customs concerning the establishment of new relationships already at the stage of establishing contact with the parties, in order to increase the likelihood of obtaining the parties' consent to mediation. In some cultures, it is not acceptable for a stranger (here: the mediator) to contact directly for an invitation to mediation, especially in a male-female configuration. The initiative for contact may be through, for example, a family member or a person regarded as an authority in the community.



The above themes are explored in the videos that were produced as part of the project:

- "The role of the interpreter in cross-border mediation" in the Mediation section,
- „The role of the interpreter in the mediation proces” in the Mediation section.

Psychologist

Due to the high level of emotion involved in mediating the abduction or threat of parental kidnapping of a child, it is recommended that a family psychologist with cross-cultural competence be involved in the process. The psychologist should be familiar with social norms regarding socially acceptable behaviour and reactions to difficult situations, as well as values regarding children and family in the parties' cultures of origin.

It is also important to consult the mental state of the parties to the mediation before the process begins to ensure that the parties can participate in the mediation in a fully informed manner. In the case of parental abductions, very often the mental state of the parties prevents them from participating fully and consciously in the process.

In cultures, e.g. Scandinavian where the social norm is not to show emotion, sparse body language and a subdued voice, the state of an emotionally unstable person may go unnoticed. The reverse is true for expressive cultures, such as Italian or Cuban, in which cases the mediating party may be mistaken for being emotionally unbalanced. In the context of cultural differences, it should be noted that an action that signifies violence in one community may be perceived differently in another culture as, for example, a socially acceptable form of emotional expression.



The above topics were discussed in a video that was produced as part of a project:

- "Parents in Mediation. How to talk to a struggling couple" in the Psychology section,
- "Parental abduction - the child's perspective" in the Psychology section,

- "The inner world of a child in a parental abduction situation" in the Psychology section,
- and in the training webinar that was produced as part of the project.

Lawyers

The presence of lawyers during the mediation process disrupts the trust-building process, runs the risk of formalising the meeting and of the parties treating the mediation like part of a court hearing.

A cross-border mediator is obliged to be familiar with basic international law, but it is difficult to require knowledge of the family law of the different countries.

Due to the different legal systems in which the parties to the mediation operate or the language barrier, it is necessary to ensure that the parties have access to a lawyer before the mediation starts, as it may be necessary to draw on the lawyer's expertise to reach an agreement. A telephone consultation or consultation via a communication platform is an acceptable option. In this way, doubts arising can be clarified efficiently and the mediation process can continue unhindered.

It is recommended that all experts involved in the mediation process (lawyer, family/child psychologist, interpreter and others) have knowledge in the area of cultural differences and are familiar with the cultural specificities of the parties and understand the motivations and context of the decisions made, in order to be able to reliably engage in the mediation process.

CHILD AND FAMILY PROTECTION INSTITUTIONS IN OTHER COUNTRIES

Knowledge of the competences and methods of child and family protection authorities in other countries is essential for the mediator to properly assess the situation and to accurately predict possible intervention and its effects on the life of the family by the aforementioned authorities. This is very important in order for the mediator to have an objective assessment of both the possible support that a family

may receive in a conflict situation in a particular country and the actions that parents perceive as a violation of their parental rights. The extent of the powers of child and family protection offices in a country is a reflection of accepted attitudes, values and social norms. In Norway and other Scandinavian countries, it is considered that the child belongs to society as a whole and has a strong right to self-determination, and if the family does not fulfil its functions the role of the state is to interfere deeply in the life of the family in order to protect the right of the child. This attitude is often opposed in countries where the child is seen as the 'property' of his or her parents and only they have the right to decide on matters of importance in the child's life.



The above topics are discussed in the videos that were produced as part of the project:

- "The Hague Convention and the European Arrest Warrant" in the Law section,
- "Prevention and mediation of the change of the child's country of residence" in the Law section,
- "The role of the central authority in parental abduction cases" in the Law section,
- "Cross-border parental abductions - ITAKA Foundation" in the Law section,
- "Selected aspects of Polish family law" in the Law section,
- "Jugendamt in Germany" in the Law section,
- "Parental Abductions and Mediation in the UK Legal System" in the Law section,
- "The family mediation process in the UK" in the Law section.

COSTS OF CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

Cross-border family mediation generates many additional costs. It is important to clarify the amount of the costs of the mediation process before the mediation starts and to determine who bears them and in what proportion. Among other things, the following should be taken into account: mediator's fees, lawyer's fees, psychologist's fees, interpreter's fees, the cost of translating documents, the cost of renting a room or

paying for communication platforms, travel and other costs of all persons participating in the mediation.

The mediator's fees and other mediation costs should be presented to the parties to the mediation in a currency whose value is known to the parties.

Given the different customs regarding billing and payment of bills etc. in different cultures, it is important to make sure that the manner of sharing and responsibility for incurring payments is understood and acceptable to the parties. A common problem is trying to haggle over the amount of fees or trying to move the conversation about money to the end of the mediation. Settling before the mediation begins can be perceived as a lack of trust or solvency by the parties - it is up to the mediator to clarify this so that the parties' trust is not destroyed.

Particular care should be taken to ensure that the man's offer to bear the entire cost is not tantamount to him 'hijacking' the mediation process, tantamount to an expectation that the de facto mediation will be conducted to meet the needs and expectations of the person bearing the cost of the mediation.

CROSS-BORDER INTERCULTURAL MEDIATION SETTLEMENT

When constructing mediation agreements, knowledge of the family law of the parties' countries of origin or residence and of international instruments governing family matters is essential.

As a general rule, in matters of parental responsibility, the courts of the Member State in which the child has his or her habitual residence at the time of filing the application or petition have jurisdiction - (Article 7 of the Brussels II ter Regulation).

The notion of the child's habitual residence should always be interpreted with reference to the specific case, on the basis of its facts.

It is advisable to draft the settlement according to one legal order and to apply for an enforceability clause in the country where the provisions of the concluded settlement will be implemented.

Two of the principles for the construction of mediation settlements are particularly influenced by cultural differences.

- Principle: It is not contrary to the principles of comity

Here, there may be a discrepancy between the rules of social coexistence in the culture of the court and the rules that apply in the culture of the party or parties to the mediation. The mediator's role is to structure the settlement agreement in a way that clarifies such discrepancies and their basis, and to secure the court's acceptance of the provisions of the settlement agreement, e.g. the parents' duty of regular and engaging care for grandparents or siblings. The mediator's knowledge and understanding of the norms, customs and rules of social intercourse in the parties' countries of origin or residence is essential here.

- Principle: It is not incomprehensible or contradictory

As explained above, it is essential here to be able to adequately frame and clarify those points in the settlement agreement which, for a court coming from a different cultural background, may be questionable.



The above topics are discussed in the video that was produced as part of the project:

- "Selected aspects from Polish family law" in the Law section,
- and in a training webinar which was produced as part of the project.

INCLUSION OF THE CHILD OR THE CHILD'S VOICE

It is the mediator's responsibility to ensure that the proposal to involve the child in the mediation or to include the child's voice is properly received by both parties both in terms of intention, conduct, benefits and risks of doing so. This is especially true in cultures where the child's voice is not taken into account in matters affecting the child and all decisions are made authoritatively by the parents.

In cultures with a high power distance or strong collectivism, it is accepted that parents decide on some aspects of their now adult children. In countries with low power distance, e.g. Sweden, children at the age of 17/18 become independent, live separately and have a high degree of autonomy in deciding their own affairs.

It is good practice to use specialised educational and psychological centres for the inclusion of the child and the child's voice in the mediation process through certified procedures. This ensures professional representation and psychological care for the child in such a difficult situation and prevents possible complications.



The above topics were discussed in the films that were produced as part of the project:

- "The voice of the child in mediation" in the Psychology section,
- "Adaptation of the child in a multicultural and multilingual environment" in the Psychology section,
- „Child participation in the mediation proces” in the Mediation section.

THE ROLE OF TIME IN CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

Due to the nature of parental kidnapping, time plays a very important role, regardless of whether the proceedings take place under the Hague Convention or not. The cross-border mediator should take care to ensure that the mediation process can be carried out quickly so as not to contribute to prolonging the procedures.

It is very beneficial in such a situation to maintain constant contact with available mediators in Poland and abroad, translators, lawyers, psychologists and other persons necessary for the rapid conduct of the international mediation process.

Since time is of the essence in situations where child abduction or kidnapping mediation is being conducted, the suspicion that a party agrees to participate in mediation simply because it is, for example, an element of a procedural tactic to prolong the procedure, the mediator is obliged to notice this fact and dispel doubts or terminate the mediation process.

REFUSAL OF A MEDIATOR TO CONDUCT CROSS-BORDER INTERCULTURAL FAMILY MEDIATION

The Hague Convention and the rules of the mediator prohibit the use of mediation where violence is present or makes the conduct of mediation subject to additional conditions.



The above topics were discussed in the films that were produced as part of the project:

- "The Hague Convention and the European Arrest Warrant" in the Law section.